



FORENSIC CUSTODY EVALUATIONS

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A Failed Experiment

Forensic custody evaluations (parenting plan assessments) are a failed experiment conducted with a vulnerable population of parents and children in the family courts, without an IRB review, without a risk-benefit analysis, and without protections for a vulnerable population.

Experimental Role: A quasi-judicial role for doctors of advising the court on custody schedules represents an experimental role for doctors, differing significantly from the traditional role of diagnosis and treatment.

Experimental Assessment Procedure: forensic custody evaluations (parenting plan assessments) are an experimental assessment procedure (when compared to the traditional practice of differential diagnostic assessment) developed specifically for the experimental quasi-judicial role for doctors.

NY Blue Ribbon Commission

The only independent review of forensic custody evaluations (parenting plan assessments) ever conducted, by the [New York Blue-Ribbon Commission on Forensic Custody Custody Evaluations \(https://ocfs.ny.gov/programs/cwcs/assets/docs/Blue-Ribbon-Commission-Report-2022.pdf\)](https://ocfs.ny.gov/programs/cwcs/assets/docs/Blue-Ribbon-Commission-Report-2022.pdf), found the practice to be “dangerous” and “harmful to children,” to “lack scientific or legal value,” and to produce “defective reports” leading to “potentially disastrous consequences for parents and children.”

From NY Blue Ribbon Commission: “In some custody cases, because of lack of evidence or the inability of parties to pay for expensive challenges of an evaluation, **defective reports** can thus escape meaningful scrutiny and are often accepted by the court, with **potentially disastrous consequences** for the parents and children... As it currently exists, the process is fraught with bias, inequity, and a statewide lack of standards, and allows for discrimination and violations of due process.”

From NY Blue Ribbon Commission: “By an 11-9 margin, a majority of Commission members favor **elimination of forensic custody evaluations entirely**, arguing that these reports are biased and **harmful to children** and **lack scientific or legal value**. At worst, evaluations can be **dangerous**, particularly in situations of domestic violence or child abuse... These members reached the conclusion that **the practice is beyond reform** and that no amount

of training for courts, forensic evaluators and/or other court personnel will successfully fix the bias, inequity and conflict of interest issues that exist within the system.”

A Discussion of the Governor’s Blue-Ribbon Commission Report on Foren
Empire Justice Center



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Blog: Ethical Violations in Forensic Psychology

This is an essay from my blog that describes the multiple ethical code violations and failures in the duty to protect in the practice of child custody evaluations in forensic psychology.

Blog: [Ethical Violations in Forensic Psychology \(Childress, 2019\)](https://drcraigchildressblog.com/2019/11/25/ethical-violations-in-forensic-psychology/?fbclid=IwAR31etz4WYvh2-TdvVcpsR3B79SRF1uULInUru3w2PADQrmPz_yP2fYvNI).
(https://drcraigchildressblog.com/2019/11/25/ethical-violations-in-forensic-psychology/?fbclid=IwAR31etz4WYvh2-TdvVcpsR3B79SRF1uULInUru3w2PADQrmPz_yP2fYvNI).

Blog: Standard 9.01

This essay describes the ethical violations in child custody evaluations surrounding inadequate assessment

Blog: [Standard 9.01](https://drcraigchildressblog.com/2020/01/04/standard-9-01a-assessment/).
(<https://drcraigchildressblog.com/2020/01/04/standard-9-01a-assessment/>).

Additional Blogs on Child Custody Evaluations

Blog: Comment on Child Custody Evalautions
(https://drcraigchildressblog.com/2018/07/31/comment-on-child-custody-evaluations/?fbclid=IwAR1MLTG7RP6_7MGhf5ReGAEHsjSgEjNs8q26MlrBIVJnx37s)
(Chlidress, 2018)

Blog: Bring Me a Goat
(<https://drcraigchildressblog.com/2017/02/04/bring-me-a-goat/>). (Childress, 2017)

Blog: The Child Custody Industry in Mental Health
(<https://drcraigchildressblog.com/2016/11/09/the-child-custody-industry-in-mental-health/>).
(Childress, 2016)

Blog: Cross-Examining Child Custody Evaluations
(<https://drcraigchildressblog.com/2016/10/08/cross-examining-child-custody-evaluations/>).
(Childress, 2016)

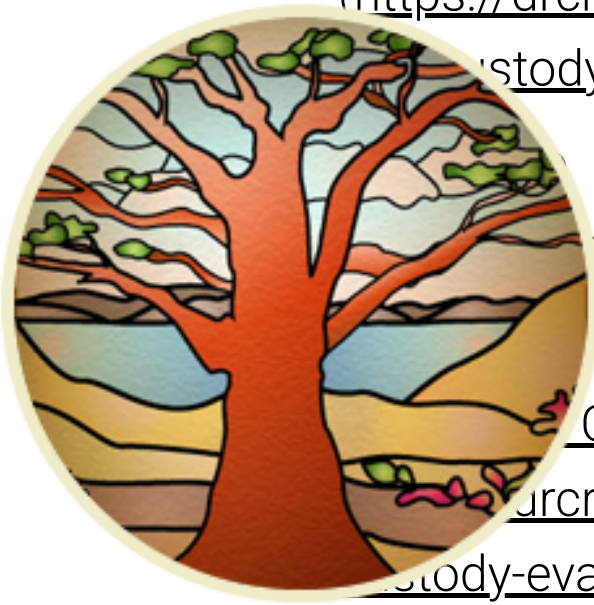
Blog: Psychopathology and Child Custody

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(<https://drcraigchildressblog.com/2015/10/21/psychopathology-custody-evaluations/>). (Childress, 2015)



(drcraigchildressblog.com/2015/08/01/rico/).
(Childress, 2015)

Child Custody Evaluations

(drcraigchildressblog.com/2015/06/06/child-custody-evaluations/). (Childress, 2015)